# Harbor Point Mutual Auto Insurance

Bodily Injury Unit

## Claim Notes

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|---|---|
| **Claim number:** | C-1441 |
| **Claimant:** | Richard Hensley |
| **Adjuster:** | Valerie Rodriguez |

03/09/2025 - Claim opened following report of a sideswipe collision during a lane change on a multi-lane roadway. Insured vehicle contacted the claimant's vehicle on the driver side rear quarter panel. Claimant reports neck strain and stiffness since the impact and states she was seen at an urgent care facility the same day. Claimant is not represented by counsel. Recorded statement scheduled.

03/17/2025 - Recorded statement obtained from the claimant. She states the other vehicle drifted into her lane without signaling as she was passing. Insured driver's account differs slightly, stating the claimant was in the blind spot and accelerating. Both accounts logged. Scene photos requested from both parties and received from claimant. Police report requested and pending.

03/18/2025 - Reviewed the police report. Responding officer noted both vehicles had damage consistent with a sideswipe and cited no one at scene. Witness listed on report not yet reached. Left voicemail. Reviewed claimant's photos, which show scrape marks on the rear door and bumper. Insured vehicle damage matches the described contact point.

03/22/2025 - Claimant provided urgent care records and a referral to a physical therapist. Records document neck strain diagnosis with a recommended course of physical therapy and over-the-counter pain management. Claimant advised of her right to seek medical treatment of her choosing and to request an itemized bill for all treatment. Claimant indicated she is still working with reduced hours and will provide wage documentation.

03/31/2025 - Witness reached by phone and confirmed the insured vehicle changed lanes without checking its mirrors, though witness could not say whether the claimant was in the blind spot. Liability appears to lean toward the insured driver. Claimant's physical therapy authorization reviewed and approved for an initial evaluation. File referred to supervisor for liability determination and reserve review. Follow-up with claimant scheduled after therapy progress report.

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## Recorded Statement

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|---|---|
| **Claim number:** | C-1441 |
| **Statement of:** | Richard Hensley |
| **Taken by:** | Valerie Rodriguez |
| **Date:** | 03/07/2025 |

Q: Thanks for making time to speak with me today. This recorded statement cocnerns the sdieswipe collision you reported. Please state your full name for the record.

A: I'd rather just give the facts. I'm the driver of the blue sedan involved.

Q: That's fine. Can you tell me where the collision happened?

A: It was on the access road in Sugar Land, Texas, near a shopping center. I was moving from the right lane over to the left to get into the turn lane.

Q: What were you doing right before the impact?

A: I checked my mirror, didn't see anything, and signaled. I started to move over slowly. Then I heard a loud scrape and felt my car get pushed toward the curb.

Q: Did you see the other vehicle at any point before contact?

A: Not that I recall. I think it was in my blind spot. It came up on my passenger side, and I didn't notice it until the contact.

Q: Were you able to stop or steer away?

A: I tried to correct back toward my lane, but there wasn't enough time. Both cars ended up stopped on the shoulder.

Q: How are you feeling physically since the collision?

A: My neck is sore and stiff, mostly on the left side. I've had some tightness across my shoulders too. I went to urgent care that same day and was told it looked like a neck strain. I'm taking over-the-counter pain relievers and trying to keep moving as much as I can.

Q: Have you had any prior neck or shoulder problems?

A: No, nothing serious. I had some stiffness years ago after a long drive, but it went away on its own.

Q: Is there anything else you'd like to add?

A: Only that I was being careful and signaled before I moved. I'd like the claim handled fairly.

Q: Thank you. This concludes the statement.